

## 25STCV19764 25STCV19764

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-07-08

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TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

July 8, 2026

CASE NUMBER

25STCV19764

MOTIONS

Demurrer to Complaint; Motion to Strike

MOVING PARTY

Defendant FCA US LLC

OPPOSING PARTY

Plaintiff Luciano Faria

MOTION

Defendant FCA US

LLC ("Defendant") demurs to the third and sixth causes of action in Plaintiff Luciano Faira's ("Plaintiff") operative complaint and moves to strike a portion of the complaint. After Defendant filed the demurrer and motion to strike on October 13, 2025, Defendant removed the action to federal court on March 27, 2026.<sup>[1]</sup> The United States District Court has not remanded Plaintiff's case.

Accordingly, the Court places the demurrer and motion to strike off calendar.

Defendant is ordered to provide notice of the Court's ruling and to file a proof of service of same.

<sup>[1]</sup>The Court notes, on March 23, 2026, Defendant also filed an answer to the complaint in which it generally denied each and every allegation in the complaint, but the pending motions were not withdrawn. The Court further notes, if at the hearing of these motions, the federal court has not remanded the matter, the Court will record the case as complete pursuant to the Superior Court of Los Angeles County, Local Rules, rule 3.22, as the Court indicated in its April 3, 2026 Minute Order.